

KAVANAUGH, J., concurring in part

had allowed those challenges. See generally *Flowers v. Mississippi*, 588 U. S. 284 (2019).

In my view, *Apodaca* warrants the same fate as *Swain*. After all, the “requirements of unanimity and impartial selection thus complement each other in ensuring the fair performance of the vital functions of a criminal court jury.” *Johnson*, 406 U. S., at 398 (Stewart, J., dissenting). And as Justice Thurgood Marshall forcefully explained in dissent in *Apodaca*, to “fence out a dissenting juror fences out a voice from the community, and undermines the principle on which our whole notion of the jury now rests.” *Johnson*, 406 U. S., at 402 (Marshall, J., dissenting in both *Johnson* and *Apodaca*).

To be clear, one could advocate for and justify a non-unanimous jury rule by resort to neutral and legitimate principles. England has employed non-unanimous juries, and various legal organizations in the United States have at times championed non-unanimous juries. See, *e. g.*, Juries Act 1974, ch. 23, § 17 (Eng.); ABA Project on Standards for Criminal Justice, Trial By Jury § 1.1, p. 7 (App. Draft 1968); ALI, Code of Criminal Procedure § 355, p. 99 (1930). And Louisiana’s modern policy decision to retain non-unanimous juries—as distinct from its original decision in the late 1800s to adopt non-unanimous juries—may have been motivated by neutral principles (or just by inertia).

But the question at this point is not whether the Constitution prohibits non-unanimous juries. It does. Rather, the disputed question here is whether to overrule an erroneous constitutional precedent that allowed non-unanimous juries. And on that question—the question whether to overrule—the Jim Crow origins and racially discriminatory effects (and the perception thereof) of non-unanimous juries in Louisiana and Oregon should matter and should count heavily in favor of overruling, in my respectful view. After all, the non-unanimous jury “is today the last of Louisiana’s Jim Crow laws.” Aiello, *supra*, at 63. And this Court has empha-